

25STLC07278 25STLC07278

County: los-angeles

Division: Civil Law and Motion

Department: 25

Hearing date: 2026-08-27

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Case Number: 25STLC07278 Hearing Date: August 27, 2026 Dept: 25

HEARING DATE: Thurs., August 27, 2026 JUDGE /DEPT: Eisenman/25

CASE NAME: Blut

v. Russell, et al. COMP.

FILED: 09-23-25

CASE NUMBER: 25STLC07278

NOTICE: OK

PROCEEDINGS: MOTION

FOR RELIEF FROM DEFAULT AND DEFAULT JUDGMENT PURSUANT TO CODE OF CIVIL
PROCEDURE SECTION 473(b)

MOVING PARTY: Defendants Dennis Russell and Russell Law
Group

RESP. PARTY: Plaintiff Monica Blut

MOTION TO

SET ASIDE DEFAULT AND DEFAULT JUDGMENT

(Code Civ. Proc., § 473(b))

TENTATIVE RULING:

The Court GRANTS Dennis Russell
and Russell Law Group's motion to set aside the default and default judgment

entered against them. The December 4, 2025 default and February 3, 2026 default judgment against Dennis Russell and Russell Law Group are hereby SET ASIDE AND VACATED.

Russell is to give notice.

SERVICE:

☒ Proof of Service Timely Filed (CRC, rule 3.1300) OK

☒ Correct Address (CCP §§ 1013, 1013a) OK

☒ 16/21 Court Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: Filed on August 14, 2026 ☐ Late ☐ None

REPLY: Filed on August 21, 2026 ☒ Late ☐ None

ANALYSIS:

Monica Blut sued Dennis Russell and Russell Law Group (collectively, Russell) for breach of contract and fraud. Russell failed to respond and Blut obtained a default judgment against Russell on February 3, 2026. Russell now moves to have the default judgment and underlying default set aside under the mandatory relief provision of Code of Civil Procedure section 473, subdivision (b), because the default was the result of counsel's mistake, inadvertence, or neglect.

A motion pursuant to the mandatory relief provision of Code of Civil Procedure section 473, subdivision (b), must be (1) timely, (2) in proper form, and (3) accompanied by an attorney's sworn affidavit attesting to the attorney's mistake, inadvertence, surprise, or neglect. (Code Civ. Proc., § 473, subd. (b).) A

court must grant relief if the party satisfies those requirements, unless the court finds that the default or dismissal was not actually caused by the attorney's fault. (Ibid.)

Russell's motion

satisfies each of those requirements. To

be timely, the motion must be made "no more than six months after entry of judgment." Default judgment was entered

February 3, 2026, making Russell's July 31, 2026 motion timely. Russell's motion attaches a proposed demurrer as a responsive pleading. Finally,

Russell's counsel declares that he "failed to calendar the responsive pleading deadline" due to his lack of an assistant at the time and loss of papers, and the failure was caused "solely by [his] own mistake, inadvertence and neglect."

Blut argues that Russell

is an attorney, so there is no innocent client here. But Blut provides no authority for this proposed exception to the mandatory relief provision, which focuses on the client's attorney—not the client. (Martin

Potts & Associates, Inc. v. Corsair, LLC (2016) 244 Cal.App.4th 432, 439.) Blut then argues that the default

and default judgment were not actually caused by attorney fault. (Code Civ. Proc., § 473, subd. (b).) There is no evidence of anything otherwise.

Accordingly, the Court

GRANTS Russell's motion. The December 4,

2025 default and February 3, 2026 default judgment against Dennis Russell and

Russell Law Group are hereby SET ASIDE AND VACATED. The proposed demurrer must be filed within 10 days of this order.

When a court grants relief

under the mandatory attorney-fault provision of Code of Civil Procedure section 473, subdivision (b), the court must direct the at-fault attorney to pay

reasonable compensatory legal fees and costs to opposing counsel or parties. Blut is ordered to submit, within 14 days of notice of this ruling, a declaration attesting to the attorney fees and costs she incurred in preparing and filing a default and default judgment package.

The Court also observes the

intemperate nature of both the filings and the underlying communications in this matter. The parties (who are all

attorneys) and their counsel are advised that they will come to grief if they continue in that manner before this Court.

Russell is to give notice.